

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

— vs. —

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

**APPENDIX TO COMPLAINANT’S MOTION TO CORRECT THE RECORD
AND FOR OTHER RELIEF**

APPENDIX “1”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

FMC Docket No.: 14-16

Marcus Nussbaum <marcus.nussbaum@gmail.com>

Tue, Aug 15, 2017 at 10:36 PM

To: "secretary@fmc.gov" <secretary@fmc.gov>

Cc: Gerry Doyle <gdoyle@doylelaw.net>, Jon Werner <jwerner@lyons-flood.com>

Dear Secretary of the Federal Maritime Commission,

I represent the Complainant in the above referenced matter.

Attached please find: COMPLAINANT'S SECOND MOTION FOR AN EXTENSION OF TIME TO FILE A RESPONSE TO RESPONDENTS PETITION REGARDING ATTORNEYS FEES.

Counsel for the respondents have been served herewith by email and via first class mail.

The original and five copies are being mailed to your office under separate cover.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)Fax: [347-572-0439](tel:347-572-0439)<http://www.nussbaumlawfirm.com/>

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**COMPLAINANTS' SECOND MOTION FOR AN EXTENSION OF TIME TO FILE OPPOSITION TO
RESPONDENTS PETITION FOR ATTORNEYS FEES.pdf**

370K

APPENDIX “2”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

FMC Docket No.: 14-16

Marcus Nussbaum <marcus.nussbaum@gmail.com>

Tue, Aug 22, 2017 at 11:25 PM

To: "secretary@fmc.gov" <secretary@fmc.gov>

Cc: Jon Werner <jwerner@lyons-flood.com>, Gerry Doyle <gdoyle@doylelaw.net>

Dear Secretary of the Federal Maritime Commission,

I represent the Complainants in the above referenced matter.

Attached please find the following:

1. Complainants' Motion for Confidential Treatment of COMPLAINANT'S REPLY TO RESPONDENTS' PETITION REGARDING ATTORNEY FEES AND REQUEST FOR AN EVIDENTIARY HEARING;
2. COMPLAINANT'S REPLY TO RESPONDENTS' PETITION REGARDING ATTORNEY FEES AND REQUEST FOR AN EVIDENTIARY HEARING - PUBLIC VERSION;
3. COMPLAINANT'S REPLY TO RESPONDENTS' PETITION REGARDING ATTORNEY FEES AND REQUEST FOR AN EVIDENTIARY HEARING - CONFIDENTIAL VERSION;
4. CERTIFICATION OF MARCUS A. NUSSBAUM - PUBLIC VERSION; and
5. CERTIFICATION OF MARCUS A. NUSSBAUM - CONFIDENTIAL VERSION

Counsel for the respondents has been served herewith and via first class mail.

The original and five copies are being mailed to your office under separate cover.

Regards,

Marcus A. Nussbaum, Esq.

P.O. Box 245599

Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)

Fax: [347-572-0439](tel:347-572-0439)

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5 attachments**Motion for Confidential Treatment.pdf**

269K

**Complainant's Response to Respondents' Petition Regarding Attorney Fees_Confidential Version.pdf**

863K

**Complainant's Response to Respondents' Petition Regarding Attorney Fees_Public Version.pdf**

723K

**Certification_Nussbaum_Confidential Version.pdf**

1565K

**Certification_Nussbaum_Public Version.pdf**

1270K

APPENDIX “3”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

Docket 14-16: Respondents Petition Regarding Attorney Fees

Jon Werner <jwerner@lyons-flood.com>

Tue, Aug 22, 2017 at 11:48 PM

To: Secretary <secretary@fmc.gov>, Gerry Doyle <gdoyle@doylelaw.net>

Cc: marcus.nussbaum@gmail.com

Dear Secretary of the Federal Maritime Commission:

Enclosed for filing in the above-captioned matter is Respondents' Opposition to Complainant's Motion for an Indefinite Stay. The original and five copies identical to the attached have been mailed. Counsel for Complainant is served by email and mail.

Regards,

Jon Werner**Lyons & Flood, LLP**

One Exchange Plaza

55 Broadway, Suite 1501

New York, NY 10006

Tel: (212) 594-2400

Fax: (212) 594-4589

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**Respondents' Opposition to Complainant's Motion for an Indefinite Stay.pdf**

OK

APPENDIX “4”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

Docket 14-16: Respondents Petition Regarding Attorney Fees

Jon Werner <jwerner@lyons-flood.com>

Wed, Aug 23, 2017 at 6:04 PM

To: Secretary <secretary@fmc.gov>, Gerry Doyle <gdoyle@doylelaw.net>

Cc: marcus.nussbaum@gmail.com

Dear Secretary of the Federal Maritime Commission:

It has come my attention that the file attached to my email below was not working. The corrected attachment is enclosed. I apologize for the technical error.

Regards,

Jon Werner**Lyons & Flood, LLP**

One Exchange Plaza

55 Broadway, Suite 1501

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From: Jon Werner [mailto:jwerner@lyons-flood.com]**Sent:** Tuesday, August 22, 2017 11:49 PM**To:** 'Secretary'; Gerry Doyle (gdoyle@doylelaw.net)**Cc:** marcus.nussbaum@gmail.com**Subject:** Docket 14-16: Respondents Petition Regarding Attorney Fees

Dear Secretary of the Federal Maritime Commission:

Enclosed for filing in the above-captioned matter is Respondents' Opposition to Complainant's Motion for an Indefinite Stay. The original and five copies identical to the attached have been mailed. Counsel for Complainant is served by email

and mail.

Regards,

Jon Werner

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Respondents' Opposition to Complainant's Motion for an Indefinite Stay.pdf
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APPENDIX “5”



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New York-based Maritime Attorneys

(212) 594-2400

Who We are



JON WERNER

Partner

Jon has extensive experience handling a wide variety of maritime and non-maritime matters, including a number of high-profile maritime casualties involving collisions, ship sinkings, fires and explosions, dangerous cargoes, and container stack collapses. He primarily represents carriers, vessel owners, charterers, P&I Clubs, and hull insurers in complex litigation and arbitration. In addition Jon is intimately familiar with the latest developments in maritime attachment and arrest procedures and law, and issues relating to enforcement of judgments and arbitral awards.

Prior to joining Lyons & Flood in 2006, Jon worked at a mid-size New York law firm where he was involved in a wide variety of matters involving underwriting and coverage issues, as well as complex construction litigation and New York Labor Law claims.

Before becoming a lawyer, Jon worked for a number of years in the IT industry and has consequently developed expertise in e-discovery issues, and the use of modern techniques for sophisticated and large scale e-discovery processing.

Jon and his wife, Liz, live in Park Slope with their daughter Zoe.

Education

Western Connecticut State University, B.B.A., cum laude
Benjamin N. Cardozo School of Law, J.D., 2005
Member of the Cardozo Arts and Entertainment Law Journal

Bar Admissions

New York
Southern District of New York
Eastern District of New York
New Jersey
District of New Jersey
U.S. Court of Appeals, Second Circuit
U.S. Court of Appeals, Third Circuit

Memberships

Maritime Lawyers Association of the United States
New York County Lawyers' Association

Contact Info

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jwerner@lyons-flood.com



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